

Assembly Bill No. 6–Select Committee  
on Public Safety and Security

CHAPTER.....

AN ACT relating to public safety; revising provisions governing regulation and designation of school zones and school crossing zones; revising provisions relating to signs in school zones and school crossing zones; providing for enhanced penalties for certain traffic violations in active school zones and school crossing zones; prohibiting the inclusion of certain information concerning pupils within a directory of pupils; prohibiting the provision of certain information concerning pupils to third parties; providing penalties; and providing other matters properly relating thereto.

**Legislative Counsel's Digest:**

Existing law requires the governing body of a local government or the Department of Transportation to designate school zones and school crossing zones. In relevant part, existing law does not prohibit a person from driving at certain speeds, making a U-turn or overtaking and passing another vehicle in a school zone or school crossing zone, as applicable, during the period from a half hour after school is no longer in operation to a half hour before school is next in operation. (NRS 484B.363) **Section 24** of this bill revises this provision to require the governing body or the Department which designated the school zone or school crossing zone, as applicable, to specify one or more periods in which a person is not prohibited from performing these acts in a school zone or school crossing zone. However, **section 24** provides that any such period may not encompass the 30 minutes after school is no longer in operation or the 30 minutes before school is next in operation.

Existing law establishes certain requirements related to signs and other devices designating school zones and school crossing zones. (NRS 268.425, 269.185, 484B.363, 484B.367) **Section 25** of this bill requires the governing body or the Department which designated the school zone or school crossing zone, as applicable, to: (1) place signs in certain locations indicating the presence of a school zone or school crossing zone; and (2) prescribe standards for the design, application, installation and maintenance of the signs designating the conditions that apply to school zones and school crossing zones. **Section 25** also authorizes the governing body and the Department to consult and collaborate with certain officers and entities regarding the standards. **Sections 35 and 36** of this bill make conforming changes related to the standards applicable to the signs and other devices in school zones and school crossing zones.

Existing law provides that a person who commits certain traffic violations in a work zone or a pedestrian safety zone may be subject to double the penalty for the underlying offense or infraction, subject to certain limitations. (NRS 484B.130, 484B.135) **Section 2** of this bill similarly provides that a person who commits certain traffic violations in an active school zone or active school crossing zone may be subject to double the penalty for the underlying offense or infraction, subject to certain limitations. **Section 2** also provides that a person who commits such traffic violations in an active school zone or active school crossing zone is subject to an assessment of twice the number of demerit points assigned to the



underlying offense. **Sections 1, 3-23 and 26-34** of this bill make conforming changes related to the enhanced penalty prescribed by **section 2**.

Existing law sets forth certain requirements governing the privacy of data concerning pupils. (NRS 388.267-388.296) **Section 36.3** of this bill prohibits a public school from including certain information concerning a pupil in a directory of pupils maintained by the school. **Section 36.4** of this bill prohibits a school district or public school from disclosing the phone number or address of any pupil or parent or legal guardian of a pupil unless required in certain circumstances.

EXPLANATION – Matter in ***bolded italics*** is new; matter between brackets ~~omitted material~~ is material to be omitted.

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THE PEOPLE OF THE STATE OF NEVADA, REPRESENTED IN  
SENATE AND ASSEMBLY, DO ENACT AS FOLLOWS:

**Section 1.** NRS 483.473 is hereby amended to read as follows:  
483.473 1. As used in this section, “traffic violation” means conviction of a moving traffic violation in any municipal court, justice court or district court in this State or a finding by any municipal court or justice court in this State that a person has committed a civil infraction pursuant to NRS 484A.703 to 484A.705, inclusive. The term includes a finding by a juvenile court that a child has violated a traffic law or ordinance other than one governing standing or parking. The term does not include:

(a) A conviction or a finding by a juvenile court of a violation of the speed limit posted by a public authority under the circumstances described in subsection 1 of NRS 484B.617; or

(b) A citation issued for a violation detected by a school bus infraction detection system pursuant to NRS 484A.605.

2. ~~[The]~~ ***Subject to section 2 of this act, the*** Department shall establish a uniform system of demerit points for various traffic violations occurring within this State affecting the driving privilege of any person who holds a driver’s license issued by the Department and persons deemed to have future driving privileges pursuant to NRS 483.447. The system must be based on the accumulation of demerits during a period of 12 months.

3. The system must be uniform in its operation, and the Department shall set up a schedule of demerits for each traffic violation, depending upon the gravity of the violation, on a scale of one demerit point for a minor violation of any traffic law to eight demerit points for an extremely serious violation of the law governing traffic violations. If a conviction of two or more traffic violations committed on a single occasion is obtained, points must be assessed for one offense or civil infraction, and if the point values differ, points must be assessed for the offense or civil infraction having the greater point value. Details of the violation must be



submitted to the Department by the court where the conviction or finding is obtained. The Department may provide for a graduated system of demerits within each category of violations according to the extent to which the traffic law was violated.

**Sec. 2.** Chapter 484B of NRS is hereby amended by adding thereto a new section to read as follows:

*1. Except as otherwise provided in subsection 2, a person who is found to have committed a violation of a speed limit, or convicted of or found to have committed a violation of NRS 484B.150, 484B.163, 484B.165, 484B.200 to 484B.217, inclusive, 484B.223, 484B.227, 484B.270, 484B.280, 484B.283, 484B.300, 484B.303, 484B.307, 484B.317, 484B.320, 484B.327, 484B.403, 484B.450, 484B.600, 484B.603, 484B.650, 484B.653, 484B.657, 484C.110 or 484C.120, that occurred in an active school zone or an active school crossing zone may:*

*(a) If the violation is a criminal offense, be punished by imprisonment or by a fine, or both, for a term or an amount equal to and in addition to the term of imprisonment or amount of the fine, or both, that the court imposes for the primary offense.*

*(b) If the violation is a civil infraction punishable pursuant to NRS 484A.703 to 484A.705, inclusive, be punished by a civil penalty in an amount equal to and in addition to the civil penalty that the court imposes for the primary infraction.*

*2. If a violation described in subsection 1 is:*

*(a) A criminal offense, the additional penalty imposed pursuant to subsection 1 must not exceed a total of \$1,000, 6 months of imprisonment or 120 hours of community service.*

*(b) A civil infraction punishable pursuant to NRS 484A.703 to 484A.705, inclusive, the additional penalty imposed pursuant to subsection 1 must not exceed a total of \$250.*

*3. If a person is subject to an additional penalty pursuant to subsection 1, the Department shall assess against the person twice the number of demerit points assigned to the offense by the uniform system of demerit points under NRS 483.473.*

*4. As used in this section:*

*(a) “Active school zone” or “active school crossing zone” means a school zone or school crossing zone:*

*(1) If the school zone or school crossing zone is designated by an operational speed limit beacon, during the hours when pupils are in class and the yellow lights of the speed limit beacon are flashing in a manner that indicates that the speed limit is in effect; or*



*(2) If the school zone or school crossing zone is not designated by an operational speed limit beacon, during the times when the sign designating the school zone or school crossing indicates that the speed limit is in effect.*

*(b) “Speed limit beacon” has the meaning ascribed to it in NRS 484B.363.*

**Sec. 3.** NRS 484B.150 is hereby amended to read as follows:

484B.150 1. It is a misdemeanor for a person to drink an alcoholic beverage while the person is driving or in actual physical control of a motor vehicle upon a highway.

2. Except as otherwise provided in this subsection, it is a misdemeanor for a person to have an open container of an alcoholic beverage within the passenger area of a motor vehicle while the motor vehicle is upon a highway. This subsection does not apply to:

(a) The passenger area of a motor vehicle which is designed, maintained or used primarily for the transportation of persons for compensation; or

(b) The living quarters of a house coach or house trailer, but does apply to the driver of such a motor vehicle who is in possession or control of an open container of an alcoholic beverage.

3. A person who violates any provision of this section may be subject to any additional penalty set forth in NRS 484B.130 or 484B.135 ~~or~~ *or section 2 of this act.*

4. As used in this section:

(a) “Alcoholic beverage” has the meaning ascribed to it in NRS 202.015.

(b) “Open container” means a container which has been opened or the seal of which has been broken.

(c) “Passenger area” means that area of a vehicle which is designed for the seating of the driver or a passenger.

**Sec. 4.** NRS 484B.163 is hereby amended to read as follows:

484B.163 1. A person shall not drive a vehicle when it is so loaded, or when there are in the front seat such number of persons, exceeding three, as to obstruct the view of the driver to the front or sides of the vehicle or as to interfere with the driver’s control over the driving mechanism of the vehicle.

2. A passenger in a vehicle shall not ride in such position as to interfere with the driver’s view ahead or to the sides, or to interfere with the driver’s control over the driving mechanism of the vehicle.

3. Except as otherwise provided in NRS 484D.440, a vehicle must not be operated upon any highway unless the driver’s vision through any required glass equipment is normal.



4. A person who violates any provision of this section may be subject to any additional penalty set forth in NRS 484B.130 or 484B.135 **H** or section 2 of this act.

**Sec. 5.** NRS 484B.165 is hereby amended to read as follows:

484B.165 1. Except as otherwise provided in this section, a person shall not, while operating a motor vehicle on a highway in this State:

(a) Manually type or enter text into a cellular telephone or other handheld wireless communications device, or send or read data using any such device to access or search the Internet or to engage in nonvoice communications with another person, including, without limitation, texting, electronic messaging and instant messaging.

(b) Use a cellular telephone or other handheld wireless communications device to engage in voice communications with another person, unless the device is used with an accessory which allows the person to communicate without using his or her hands, other than to activate, deactivate or initiate a feature or function on the device.

2. The provisions of this section do not apply to:

(a) A paid or volunteer firefighter, emergency medical technician, advanced emergency medical technician, paramedic, ambulance attendant or other person trained to provide emergency medical services who is acting within the course and scope of his or her employment.

(b) A law enforcement officer or any person designated by a sheriff or chief of police or the Director of the Department of Public Safety who is acting within the course and scope of his or her employment.

(c) A person who is reporting a medical emergency, a safety hazard or criminal activity or who is requesting assistance relating to a medical emergency, a safety hazard or criminal activity.

(d) A person who is responding to a situation requiring immediate action to protect the health, welfare or safety of the driver or another person and stopping the vehicle would be inadvisable, impractical or dangerous.

(e) A person who is licensed by the Federal Communications Commission as an amateur radio operator and who is providing a communication service in connection with an actual or impending disaster or emergency, participating in a drill, test, or other exercise in preparation for a disaster or emergency or otherwise communicating public information.



(f) An employee or contractor of a public utility who uses a handheld wireless communications device:

(1) That has been provided by the public utility; and

(2) While responding to a dispatch by the public utility to respond to an emergency, including, without limitation, a response to a power outage or an interruption in utility service.

3. The provisions of this section do not prohibit the use of a voice-operated global positioning or navigation system that is affixed to the vehicle.

4. A person who violates any provision of subsection 1 is guilty of a civil infraction punishable pursuant to NRS 484A.703 to 484A.705, inclusive, and:

(a) For the first violation within the immediately preceding 7 years, shall pay a civil penalty of \$50.

(b) For the second violation within the immediately preceding 7 years, shall pay a civil penalty of \$100.

(c) For the third or subsequent violation within the immediately preceding 7 years, shall pay a civil penalty of \$250.

5. A person who violates any provision of subsection 1 may be subject to any additional penalty set forth in NRS 484B.130 or 484B.135 ~~or~~ **or section 2 of this act.**

6. The Department of Motor Vehicles shall not treat a first violation of this section in the manner statutorily required for a moving traffic violation.

7. For the purposes of this section, a person shall be deemed not to be operating a motor vehicle if the motor vehicle is driven autonomously and the autonomous operation of the motor vehicle is authorized by law.

8. As used in this section:

(a) “Handheld wireless communications device” means a handheld device for the transfer of information without the use of electrical conductors or wires and includes, without limitation, a cellular telephone, a personal digital assistant, a pager and a text messaging device. The term does not include a device used for two-way radio communications if:

(1) The person using the device has a license to operate the device, if required; and

(2) All the controls for operating the device, other than the microphone and a control to speak into the microphone, are located on a unit which is used to transmit and receive communications and which is separate from the microphone and is not intended to be held.



(b) “Public utility” means a supplier of electricity or natural gas or a provider of telecommunications service for public use who is subject to regulation by the Public Utilities Commission of Nevada.

**Sec. 6.** NRS 484B.200 is hereby amended to read as follows:

484B.200 1. Upon all highways of sufficient width a vehicle must be driven upon the right half of the highway, except as follows:

(a) When overtaking and passing another vehicle proceeding in the same direction under the laws governing such movements;

(b) When the right half of the highway is closed to traffic;

(c) Upon a highway divided into three lanes for traffic under the laws applicable thereon;

(d) Upon a highway designated and posted for one-way traffic; or

(e) When the highway is not of sufficient width.

2. A person who violates any provision of this section may be subject to any additional penalty set forth in NRS 484B.130 or 484B.135 **H or section 2 of this act.**

**Sec. 7.** NRS 484B.203 is hereby amended to read as follows:

484B.203 1. Drivers of vehicles proceeding in opposite directions shall pass each other keeping to the right, and upon highways having width for not more than one line of traffic in each direction, each driver shall give to the other at least one-half of the paved portion of the highway as nearly as possible.

2. A person who violates any provision of this section may be subject to any additional penalty set forth in NRS 484B.130 or 484B.135 **H or section 2 of this act.**

**Sec. 8.** NRS 484B.207 is hereby amended to read as follows:

484B.207 1. The driver of a vehicle overtaking another vehicle proceeding in the same direction shall pass to the left thereof at a safe distance and shall not again drive to the right side of the highway until safely clear of the overtaken vehicle.

2. Except when overtaking and passing on the right is permitted, the driver of an overtaken vehicle shall give way to the right in favor of the overtaking vehicle upon observing the overtaking vehicle or hearing a signal. The driver of an overtaken vehicle shall not increase the speed of the vehicle until completely passed by the overtaking vehicle.

3. A person who violates any provision of this section may be subject to any additional penalty set forth in NRS 484B.130 or 484B.135 **H or section 2 of this act.**



**Sec. 9.** NRS 484B.208 is hereby amended to read as follows:

484B.208 1. Except as otherwise provided in subsection 2, on a controlled-access highway which has two or more clearly marked lanes for traveling in the same direction, a driver may not continue to operate a motor vehicle in the extreme left lane if the driver knows, or reasonably should know, that he or she is traveling at a rate of speed which is less than the posted speed limit for that portion of the controlled-access highway and is being overtaken in that lane from the rear by a motor vehicle traveling at a higher rate of speed.

2. The requirements of subsection 1 do not apply:

(a) To a driver operating a motor vehicle that is:

(1) Overtaking another vehicle proceeding in the same direction;

(2) Preparing for a left turn at an intersection;

(3) Traveling in a lane designated for the use of high-occupancy vehicles pursuant to NRS 484A.460, if the driver complies with the requirements to travel in such a lane; or

(4) Engaged in the construction, maintenance or repair of the highway, including, without limitation, the removal of snow.

(b) When traffic conditions, inclement weather, obstructions or hazards make it necessary to drive in the extreme left lane.

(c) When compliance with an official traffic control device or the directions given by a peace officer makes it necessary to drive in the extreme left lane.

(d) To the driver of an authorized emergency vehicle in the course of his or her official duties.

(e) To a driver operating a motor vehicle within the geographical limits of a city or town.

**3. *A person who violates any provision of this section may be subject to any additional penalty set forth in NRS 484B.130 or 484B.135, or section 2 of this act.***

**Sec. 10.** NRS 484B.210 is hereby amended to read as follows:

484B.210 1. The driver of a vehicle may overtake and pass upon the right of another vehicle only under the following conditions:

(a) When the driver of the vehicle overtaken is making or signaling to make a left turn.

(b) Upon a highway with unobstructed pavement which is not occupied by parked vehicles and which is of sufficient width for two or more lines of moving vehicles in each direction.

(c) Upon a highway with unobstructed pavement which is not marked as a traffic lane and which is not occupied by parked





vehicles, if the vehicle that is overtaking and passing another vehicle:

(1) Except as otherwise provided in subsection 4, does not travel more than 200 feet in the section of pavement not marked as a traffic lane; or

(2) While being driven in the section of pavement not marked as a traffic lane, does not travel through an intersection or past any private way that is used to enter or exit the highway.

(d) Upon any highway on which traffic is restricted to one direction of movement, where the highway is free from obstructions and of sufficient width for two or more lines of moving vehicles.

2. The driver of a vehicle may overtake and pass another vehicle upon the right only under conditions permitting such movement in safety.

3. The driver of a vehicle shall not overtake and pass another vehicle upon the right when such movement requires driving off the paved portion of the highway.

4. The provisions of subparagraph (1) of paragraph (c) of subsection 1 do not apply to:

(a) An authorized emergency vehicle described in NRS 484A.480;

(b) A vehicle which has been issued a permit to operate as an authorized emergency vehicle pursuant to NRS 484A.490;

(c) A traffic incident management vehicle;

(d) A tow car;

(e) A coroner vehicle; or

(f) A public transit motor bus,

➔ that is being driven on the paved shoulder of a highway where lawfully placed signage allows that vehicle to use the shoulder in that manner.

5. A person who violates any provision of this section may be subject to any additional penalty set forth in NRS 484B.130 or 484B.135 ~~H~~ **or section 2 of this act.**

6. As used in this section:

(a) “Coroner vehicle” means an authorized vehicle used by a county coroner, medical examiner or medicolegal death investigator:

(1) Responding to the scene of a death; or

(2) Transporting a dead human body.

(b) “Hazardous material vehicle” means a vehicle used by the Department of Transportation for the cleanup of a spill of hazardous or illicit material, solid waste or other environmental hazards on or



adjacent to a highway or within the rights-of-way of the Department of Transportation.

(c) “Public transit motor bus” means a vehicle used by a public transit system, designed for carrying more than 10 passengers and used for the transportation of persons for compensation.

(d) “Public transit system” has the meaning ascribed to it in NRS 277A.120.

(e) “Traffic incident” means any vehicle, person, condition or other traffic hazard which is located on or near a roadway and which poses a danger to the flow of traffic or to a person involved in, responding to or assisting with the traffic hazard.

(f) “Traffic incident management vehicle” means an authorized vehicle used by the Department of Transportation to provide aid to motorists or to mitigate traffic incidents and which makes use of flashing amber warning lights that meet the requirements of subsection 1 of NRS 484D.185 and any standards approved by the Department of Public Safety. The term includes:

(1) Vehicles operating as part of the Freeway Service Patrol of the Department of Transportation; and

(2) Vehicles, including, without limitation, hazardous material vehicles, which respond to traffic incidents, motor vehicle crashes or other emergencies for purposes other than providing police, fire and emergency medical services.

**Sec. 11.** NRS 484B.213 is hereby amended to read as follows:

484B.213 1. A vehicle must not be driven to the left side of the center of a two-lane, two-directional highway and overtaking and passing another vehicle proceeding in the same direction, unless such left side is clearly visible and is free of oncoming traffic for a sufficient distance ahead to permit such overtaking and passing to be completely made without interfering with the safe operation of any vehicle approaching from the opposite direction or any vehicle overtaken.

2. A vehicle must not be driven to the left side of the highway at any time:

(a) When approaching the crest of a grade or upon a curve in the highway where the driver’s view is obstructed within such distance as to create a hazard in the event another vehicle might approach from the opposite direction.

(b) When approaching within 100 feet or traversing any intersection or railroad grade crossing.

(c) When the view is obstructed upon approaching within 100 feet of any bridge, viaduct or tunnel.

3. Subsection 2 does not apply upon a one-way highway.



4. A person who violates any provision of this section may be subject to any additional penalty set forth in NRS 484B.130 or 484B.135 ***[H] or section 2 of this act.***

**Sec. 12.** NRS 484B.217 is hereby amended to read as follows:

484B.217 1. The Department of Transportation with respect to highways constructed under the authority of chapter 408 of NRS, and local authorities with respect to highways under their jurisdiction, may determine those zones of highways where overtaking and passing to the left or making a left-hand turn would be hazardous, and may by the erection of official traffic-control devices indicate such zones. When such devices are in place and clearly visible to an ordinarily observant person, every driver of a vehicle shall obey the directions thereof.

2. Except as otherwise provided in subsections 3 and 4, a driver shall not drive on the left side of the highway within such zone or drive across or on the left side of any pavement striping designed to mark such zone throughout its length.

3. A driver may drive across a pavement striping marking such zone to an adjoining highway if the driver has first given the appropriate turn signal and there will be no impediment to oncoming or following traffic.

4. Except where otherwise provided, a driver may drive across a pavement striping marking such a zone to make a left-hand turn if the driver has first given the appropriate turn signal in compliance with NRS 484B.413, if it is safe and if it would not be an impediment to oncoming or following traffic.

5. A person who violates any provision of this section may be subject to any additional penalty set forth in NRS 484B.130 or 484B.135 ***[H] or section 2 of this act.***

**Sec. 13.** NRS 484B.223 is hereby amended to read as follows:

484B.223 1. If a highway has two or more clearly marked lanes for traffic traveling in one direction, vehicles must:

(a) Be driven as nearly as practicable entirely within a single lane; and

(b) Not be moved from that lane until the driver has given the appropriate turn signal and ascertained that such movement can be made with safety.

2. Upon a highway which has been divided into three clearly marked lanes, a vehicle must not be driven in the extreme left lane at any time. A vehicle on such a highway must not be driven in the center lane except:



(a) When overtaking and passing another vehicle where the highway is clearly visible and the center lane is clear of traffic for a safe distance;

(b) In preparation for a left turn; or

(c) When the center lane is allocated exclusively to traffic moving in the direction in which the vehicle is proceeding and a sign is posted to give notice of such allocation.

3. If a highway has been designed to provide a single center lane to be used only for turning by traffic moving in both directions, the following rules apply:

(a) A vehicle may be driven in the center turn lane only for the purpose of making a left-hand turn onto or from the highway.

(b) A vehicle must not travel more than 200 feet in a center turn lane before making a left-hand turn from the highway.

(c) A vehicle must not travel more than 50 feet in a center turn lane after making a left-hand turn onto the highway before merging with traffic.

4. If a highway has been designed to provide a single right lane to be used only for turning, a vehicle must:

(a) Be driven in the right turn lane only for the purpose of making a right turn; and

(b) While being driven in the right turn lane, not travel through an intersection.

5. A person who violates any provision of this section may be subject to any additional penalty set forth in NRS 484B.130 or 484B.135 **H or section 2 of this act.**

**Sec. 14.** NRS 484B.227 is hereby amended to read as follows:

484B.227 1. Every vehicle driven upon a divided highway must be driven only upon the right-hand roadway and must not be driven over, across or within any dividing space, barrier or section or make any left turn, semicircular turn or U-turn, except through an opening in the barrier or dividing section or space or at a crossover or intersection established by a public authority.

2. A person who violates any provision of this section is guilty of a misdemeanor.

3. A person who violates any provision of this section may be subject to any additional penalty set forth in NRS 484B.130 or 484B.135 **H or section 2 of this act.**

**Sec. 15.** NRS 484B.270 is hereby amended to read as follows:

484B.270 1. The driver of a motor vehicle shall not intentionally interfere with the movement of a person lawfully riding a bicycle, an electric bicycle or an electric scooter.



2. When overtaking or passing a bicycle, an electric bicycle or an electric scooter proceeding in the same direction, the driver of a motor vehicle shall exercise due care and:

(a) If there is more than one lane for traffic proceeding in the same direction, move the vehicle to the lane to the immediate left, if the lane is available and moving into the lane is reasonably safe; or

(b) If there is only one lane for traffic proceeding in the same direction, pass to the left of the bicycle, electric bicycle or electric scooter at a safe distance, which must be not less than 3 feet between any portion of the vehicle and the bicycle, electric bicycle or electric scooter, and shall not move again to the right side of the highway until the vehicle is safely clear of the overtaken bicycle, electric bicycle or electric scooter. Except as otherwise provided in NRS 484B.213 and 484B.217, when passing to the left of a bicycle, electric bicycle or electric scooter at a safe distance of not less than 3 feet between any portion of the vehicle and the bicycle, electric bicycle or electric scooter, this paragraph authorizes the driver, if it is safe, to pass:

(1) To the left of the center of the highway.

(2) In a no-passing zone.

3. The driver of a motor vehicle shall yield the right-of-way to any person riding a bicycle, an electric bicycle or an electric scooter or a pedestrian as provided in subsection 6 of NRS 484B.297 on the pathway or lane. The driver of a motor vehicle shall not enter, stop, stand, park or drive within a pathway or lane provided for bicycles, electric bicycles or electric scooters except:

(a) When entering or exiting an alley or driveway;

(b) When operating or parking a disabled vehicle;

(c) To avoid conflict with other traffic;

(d) In the performance of official duties;

(e) In compliance with the directions of a police officer; or

(f) In an emergency.

4. Except as otherwise provided in subsection 3, the driver of a motor vehicle shall not enter or proceed through an intersection while driving within a pathway or lane provided for bicycles, electric bicycles or electric scooters.

5. The driver of a motor vehicle shall:

(a) Exercise due care to avoid a collision with a person riding a bicycle, an electric bicycle or an electric scooter; and

(b) Give an audible warning with the horn of the vehicle if appropriate and when necessary to avoid such a collision.

6. If, while violating any provision of subsections 1 to 5, inclusive, the driver of a motor vehicle is the proximate cause of a



collision with a person riding a bicycle, an electric bicycle or an electric scooter, the driver is subject to the additional penalty set forth in subsection 4 of NRS 484B.653.

7. The operator of a bicycle, an electric bicycle or an electric scooter shall not:

(a) Intentionally interfere with the movement of a motor vehicle; or

(b) Overtake and pass a motor vehicle unless the operator can do so safely without endangering himself or herself or the occupants of the motor vehicle.

**8. A person who violates any provision of this section may be subject to any additional penalty set forth in section 2 of this act.**

**Sec. 16.** NRS 484B.280 is hereby amended to read as follows:

484B.280 1. A driver of a motor vehicle shall:

(a) Exercise due care to avoid a collision with a pedestrian;

(b) Give an audible warning with the horn of the vehicle if appropriate and when necessary to avoid such a collision; and

(c) Exercise proper caution upon observing a pedestrian:

(1) On or near a highway, street or road;

(2) At or near a bus stop or bench, shelter or transit stop for passengers of public mass transportation or in the act of boarding a bus or other public transportation vehicle; or

(3) In or near a school zone or a school crossing zone marked in accordance with NRS ~~484B.363~~ 484B.367 or a marked or unmarked crosswalk.

2. If, while violating any provision of this section, the driver of a motor vehicle is the proximate cause of a collision with a pedestrian, the driver is subject to the additional penalty set forth in subsection 4 of NRS 484B.653.

3. A person who violates any provision of subsection 1 may be subject to the additional penalty set forth in NRS 484B.135 ~~or~~ **section 2 of this act.**

**Sec. 17.** NRS 484B.283 is hereby amended to read as follows:

484B.283 1. Except as otherwise provided in NRS 484B.287, 484B.290 and 484B.350:

(a) When official traffic-control devices are not in place or not in operation, the driver of a vehicle shall yield the right-of-way, slowing down or stopping if need be so to yield, to a pedestrian crossing the highway within a crosswalk when the pedestrian is upon the half of the highway upon which the vehicle is traveling or onto which the vehicle is turning, or when the pedestrian is approaching so closely from the opposite half of the highway as to be in danger.



(b) A pedestrian shall not suddenly leave a curb or other place of safety and walk or run into the path of a vehicle which is so close that it is impossible for the driver to yield.

(c) Whenever a vehicle is stopped at a marked crosswalk or at an unmarked crosswalk at an intersection, the driver of any other vehicle approaching from the rear shall not overtake and pass the stopped vehicle until the driver has determined that the vehicle being overtaken was not stopped for the purpose of permitting a pedestrian to cross the highway.

(d) Whenever signals exhibiting the words “Walk,” “Don’t Walk,” “Wait” or similar symbols are in place, such signals indicate as follows:

(1) While the “Walk” indication or walking person symbol is illuminated, pedestrians facing the signal may proceed across the highway in the direction of the signal and must be given the right-of-way by the drivers of all vehicles.

(2) While the “Don’t Walk” or “Wait” indication or an upraised hand symbol is illuminated, is flashing and is accompanied by a countdown timer, a pedestrian may proceed across the highway in the direction of the signal, but must complete the crossing before the countdown timer gets to zero.

(3) While the “Don’t Walk” or “Wait” indication or an upraised hand symbol is illuminated and flashing but is not accompanied by a countdown timer, a pedestrian may not proceed to cross the highway, but a pedestrian who entered the highway lawfully pursuant to subparagraph (1) may continue to cross the highway but must proceed to a curb, sidewalk, safety zone if one is provided or other place of safety before the “Don’t Walk” or “Wait” indication or an upraised hand symbol is illuminated and steady.

(4) While the “Don’t Walk” or “Wait” indication or an upraised hand symbol is illuminated and steady a pedestrian may not proceed to cross the highway, but a pedestrian who entered the highway lawfully pursuant to subparagraph (1) or (2) may continue to cross the highway but must proceed to a curb, sidewalk, safety zone if one is provided or other place of safety as soon as possible.

2. If, while violating paragraph (a) or (c) of subsection 1, the driver of a motor vehicle is the proximate cause of a collision with a pedestrian, the driver is subject to the additional penalty set forth in subsection 4 of NRS 484B.653.

3. A person who violates any provision of subsection 1 may be subject to the additional penalty set forth in NRS 484B.135 **H or section 2 of this act.**



4. As used in this section, “half of the highway” means all traffic lanes of a highway which are designated for traffic traveling in one direction, and includes the entire highway in the case of a one-way highway.

**Sec. 18.** NRS 484B.300 is hereby amended to read as follows:

484B.300 1. Except as otherwise provided in NRS 484B.307, it is unlawful for any driver to disobey the instructions of any official traffic-control device placed in accordance with the provisions of chapters 484A to 484E, inclusive, of NRS, unless at the time otherwise directed by a police officer.

2. No provision of chapters 484A to 484E, inclusive, of NRS for which such devices are required may be enforced against an alleged violator if at the time and place of the alleged violation the device is not in proper position and sufficiently legible to be seen by an ordinarily observant person. Whenever a particular provision of chapters 484A to 484E, inclusive, of NRS does not state that such devices are required, the provision is effective even though no devices are erected or in place.

3. Whenever devices are placed in position approximately conforming to the requirements of chapters 484A to 484E, inclusive, of NRS, such devices are presumed to have been so placed by the official act or direction of a public authority, unless the contrary is established by competent evidence.

4. Any device placed pursuant to the provisions of chapters 484A to 484E, inclusive, of NRS and purporting to conform to the lawful requirements pertaining to such devices is presumed to comply with the requirements of chapters 484A to 484E, inclusive, of NRS unless the contrary is established by competent evidence.

5. A person who violates any provision of subsection 1 may be subject to any additional penalty set forth in NRS 484B.130 or 484B.135 **or section 2 of this act.**

**Sec. 19.** NRS 484B.303 is hereby amended to read as follows:

484B.303 1. Whenever official traffic-control devices are erected indicating that no right or left turn is permitted, it is unlawful for any driver of a vehicle to disobey the directions of any such devices.

2. A person who violates any provision of this section may be subject to any additional penalty set forth in NRS 484B.130 or 484B.135 **or section 2 of this act.**

**Sec. 20.** NRS 484B.307 is hereby amended to read as follows:

484B.307 1. Whenever traffic is controlled by official traffic-control devices exhibiting different colored lights, or colored lighted arrows, successively one at a time or in combination as declared in





the manual and specifications adopted by the Department of Transportation, only the colors green, yellow and red may be used, except for special pedestrian-control devices carrying a word legend as provided in NRS 484B.283. The lights, arrows and combinations thereof indicate and apply to drivers of vehicles and pedestrians as provided in this section.

2. When the signal is circular green alone:

(a) Vehicular traffic facing the signal may proceed straight through or turn right or left unless another device at the place prohibits either or both such turns. Such vehicular traffic, including vehicles turning right or left, must yield the right-of-way to other vehicles and to pedestrians lawfully within the intersection or an adjacent crosswalk at the time the signal is exhibited.

(b) Pedestrians facing such a signal may proceed across the highway within any marked or unmarked crosswalk, unless directed otherwise by another device as provided in NRS 484B.283.

3. Where the signal is circular green with a green turn arrow:

(a) Vehicular traffic facing the signal may proceed to make the movement indicated by the green turn arrow or such other movement as is permitted by the circular green signal, but the traffic must yield the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection at the time the signal is exhibited. Drivers turning in the direction of the arrow when displayed with the circular green are thereby advised that so long as a turn arrow is illuminated, oncoming or opposing traffic simultaneously faces a steady red signal.

(b) Pedestrians facing such a signal may proceed across the highway within any marked or unmarked crosswalk, unless directed otherwise by another device as provided in NRS 484B.283.

4. Where the signal is a green turn arrow alone:

(a) Vehicular traffic facing the signal may proceed only in the direction indicated by the arrow signal so long as the arrow is illuminated, but the traffic must yield the right-of-way to pedestrians lawfully within the adjacent crosswalk and to other traffic lawfully using the intersection.

(b) Pedestrians facing such a signal shall not enter the highway until permitted to proceed by another device as provided in NRS 484B.283.

5. Where the signal is a green straight-through arrow alone:

(a) Vehicular traffic facing the signal may proceed straight through, but must not turn right or left. Such vehicular traffic must yield the right-of-way to other vehicles and to pedestrians lawfully



within the intersection or an adjacent crosswalk at the time the signal is exhibited.

(b) Pedestrians facing such a signal may proceed across the highway within the appropriate marked or unmarked crosswalk, unless directed otherwise by another device as provided in NRS 484B.283.

6. Where the signal is a steady yellow signal alone:

(a) Vehicular traffic facing the signal is thereby warned that the related green movement is being terminated or that a steady red indication will be exhibited immediately thereafter, and such vehicular traffic must not enter the intersection when the red signal is exhibited.

(b) Pedestrians facing such a signal, unless otherwise directed by another device as provided in NRS 484B.283, are thereby advised that there is insufficient time to cross the highway.

7. Where the signal is a flashing yellow turn arrow, displayed alone or in combination with another signal:

(a) Vehicular traffic facing the signal is permitted to cautiously enter the intersection only to make the movement indicated by the arrow signal, or other such movement as is permitted by other signal indications displayed at the same time. Such vehicular traffic must yield the right-of-way to pedestrians lawfully within the intersection or an adjacent crosswalk and yield the right-of-way to other traffic lawfully within the intersection.

(b) Pedestrians facing such a signal, unless otherwise directed by another device as provided in NRS 484B.283, are thereby advised that there may be insufficient time to cross the highway, but may proceed across the highway within the appropriate marked or unmarked crosswalk.

8. Where the signal is a steady red signal alone:

(a) Vehicular traffic facing the signal must stop before entering the crosswalk on the nearest side of the intersection where the sign or pavement marking indicates where the stop must be made, or in the absence of any such crosswalk, sign or marking, then before entering the intersection, and, except as otherwise provided in paragraphs (c) and (d), must remain stopped or standing until the green signal is shown.

(b) Pedestrians facing such a signal shall not enter the highway, unless permitted to proceed by another device as provided in NRS 484B.283.

(c) After complying with the requirement to stop, vehicular traffic facing such a signal and situated on the extreme right of the highway may proceed into the intersection for a right turn only



when the intersecting highway is two-directional or one-way to the right, or vehicular traffic facing such a signal and situated on the extreme left of a one-way highway may proceed into the intersection for a left turn only when the intersecting highway is one-way to the left, but must yield the right-of-way to pedestrians and other traffic proceeding as directed by the signal at the intersection.

(d) After complying with the requirement to stop, a person driving a motorcycle, moped or trimobile or riding a bicycle, an electric bicycle or an electric scooter may proceed straight through or turn right or left if:

(1) The person waits for two complete cycles of the lights or lighted arrows of the applicable official traffic-control device and the signal does not change because of a malfunction or because the signal failed to detect the presence of the motorcycle, moped, trimobile, bicycle, electric bicycle or electric scooter;

(2) No other device at the place prohibits either or both such turns, if applicable; and

(3) The person yields the right-of-way to pedestrians and other traffic proceeding as directed by the signal at the intersection.

(e) Vehicular traffic facing the signal may not proceed on or through any private or public property to enter the intersecting street where traffic is not facing a red signal to avoid the red signal.

9. Where the signal is a steady red with a green turn arrow:

(a) Except as otherwise provided in paragraph (b), vehicular traffic facing the signal may enter the intersection only to make the movement indicated by the green turn arrow, but must yield the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection. Drivers turning in the direction of the arrow are thereby advised that so long as the turn arrow is illuminated, oncoming or opposing traffic simultaneously faces a steady red signal.

(b) A person driving a motorcycle, moped or trimobile or riding a bicycle, an electric bicycle or an electric scooter facing the signal may proceed straight through or turn in the direction opposite that indicated by the green turn arrow if:

(1) The person stops before entering the crosswalk on the nearest side of the intersection where the sign or pavement marking indicates where the stop must be made or, in the absence of any such crosswalk, sign or marking, before entering the intersection;

(2) The person waits for two complete cycles of the lights or lighted arrows of the applicable official traffic-control device and the signal does not change because of a malfunction or because the



signal failed to detect the presence of the motorcycle, moped, trimobile, bicycle, electric bicycle or electric scooter;

(3) No other device at the place prohibits the turn, if applicable; and

(4) The person yields the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection.

(c) Pedestrians facing such a signal shall not enter the highway, unless permitted to proceed by another device as provided in NRS 484B.283.

10. If a person violates paragraph (d) of subsection 8 or paragraph (b) of subsection 9 and that violation results in an injury to another person, the violation creates a rebuttable presumption of all facts necessary to impose civil liability for the injury.

11. If a signal is erected and maintained at a place other than an intersection, the provisions of this section are applicable except as to those provisions which by their nature can have no application. Any stop required must be made at a sign or pavement marking indicating where the stop must be made, but in the absence of any such device the stop must be made at the signal.

12. Whenever signals are placed over the individual lanes of a highway, the signals indicate, and apply to drivers of vehicles, as follows:

(a) A downward-pointing green arrow means that a driver facing the signal may drive in any lane over which the green signal is shown.

(b) A red “X” symbol means a driver facing the signal must not enter or drive in any lane over which the red signal is shown.

13. A local authority shall not adopt an ordinance or regulation or take any other action that prohibits vehicular traffic from crossing an intersection when:

(a) The red signal is exhibited; and

(b) The vehicular traffic in question had already completely entered the intersection before the red signal was exhibited. For the purposes of this paragraph, a vehicle shall be considered to have “completely entered” an intersection when all portions of the vehicle have crossed the limit line or other point of demarcation behind which vehicular traffic must stop when a red signal is displayed.

14. A person who violates any provision of this section may be subject to the additional penalty set forth in NRS 484B.135 ~~or~~ **or section 2 of this act.**



**Sec. 21.** NRS 484B.317 is hereby amended to read as follows:

484B.317 1. A person shall not, without lawful authority, attempt to or alter, deface, injure, knock down or remove any official traffic-control device or any railroad sign or signal or any inscription, shield or insignie thereon, or any other part thereof.

2. A person who violates subsection 1:

(a) Is guilty of a misdemeanor; and

(b) May be subject to any additional penalty set forth in NRS 484B.130 or 484B.135 ~~H~~ *or section 2 of this act.*

**Sec. 22.** NRS 484B.320 is hereby amended to read as follows:

484B.320 1. Except as otherwise provided in this section:

(a) A person shall not operate a vehicle on the highways of this State if the vehicle is equipped with any device or mechanism, including, without limitation, a mobile transmitter, that is capable of interfering with or altering the signal of a traffic-control signal.

(b) A person shall not operate any device or mechanism, including, without limitation, a mobile transmitter, that is capable of interfering with or altering the signal of a traffic-control signal.

2. Except as otherwise provided in this subsection, a person shall not in this State sell or offer for sale any device or mechanism, including, without limitation, a mobile transmitter, that is capable of interfering with or altering the signal of a traffic-control signal. The provisions of this subsection do not prohibit a person from selling or offering for sale:

(a) To a provider of mass transit, a signal prioritization device; or

(b) To a response agency, a signal preemption device or a signal prioritization device, or both.

3. A police officer:

(a) Shall, without a warrant, seize any device or mechanism, including, without limitation, a mobile transmitter, that is capable of interfering with or altering the signal of a traffic-control signal; or

(b) May, without a warrant, seize and take possession of a vehicle equipped with any device or mechanism that is capable of interfering with or altering the signal of a traffic-control signal, including, without limitation, a mobile transmitter, if the device or mechanism cannot be removed from the motor vehicle by the police officer, and may cause the vehicle to be towed and impounded until:

(1) The device or mechanism is removed from the vehicle; and

(2) The owner claims the vehicle by paying the cost of the towing and impoundment.



4. Neither the police officer nor the governmental entity which employs the officer is civilly liable for any damage to a vehicle seized pursuant to the provisions of paragraph (b) of subsection 3 that occurs after the vehicle is seized but before the towing process begins.

5. Except as otherwise provided in subsection 9, the presence of any device or mechanism, including, without limitation, a mobile transmitter, that is capable of interfering with or altering the signal of a traffic-control signal in or on a vehicle on the highways of this State constitutes prima facie evidence of a violation of this section. The State need not prove that the device or mechanism in question was in an operative condition or being operated.

6. A person who violates the provisions of subsection 1 or 2 is guilty of a misdemeanor.

7. A person who violates any provision of subsection 1 or 2 may be subject to any additional penalty set forth in NRS 484B.130 or 484B.135 **H** or section 2 of this act.

8. A provider of mass transit shall not operate or cause to be operated a signal prioritization device in such a manner as to impede or interfere with the use by response agencies of signal preemption devices.

9. The provisions of this section do not:

(a) Except as otherwise provided in subsection 8, prohibit a provider of mass transit from acquiring, possessing or operating a signal prioritization device.

(b) Prohibit a response agency from acquiring, possessing or operating a signal preemption device or a signal prioritization device, or both.

10. As used in this section:

(a) “Mobile transmitter” means a device or mechanism that is:

(1) Portable, installed within a vehicle or capable of being installed within a vehicle; and

(2) Designed to affect or alter, through the emission or transmission of sound, infrared light, strobe light or any other audible, visual or electronic method, the normal operation of a traffic-control signal.

➤ The term includes, without limitation, a signal preemption device and a signal prioritization device.

(b) “Provider of mass transit” means a governmental entity or a contractor of a governmental entity which operates, in whole or in part:

(1) A public transit system, as that term is defined in NRS 377A.016; or



(2) A system of public transportation referred to in NRS 277A.270.

(c) “Response agency” means an agency of this State or of a political subdivision of this State that provides services related to law enforcement, firefighting, emergency medical care or public safety. The term includes a nonprofit organization or private company that, as authorized pursuant to chapter 450B of NRS:

(1) Provides ambulance service; or

(2) Provides the level of medical care provided by an advanced emergency medical technician or paramedic to sick or injured persons at the scene of an emergency or while transporting those persons to a medical facility.

(d) “Signal preemption device” means a mobile transmitter that, when activated and when a vehicle equipped with such a device approaches an intersection controlled by a traffic-control signal, causes:

(1) The signal, in the direction of travel of the vehicle, to remain green if the signal is already displaying a green light;

(2) The signal, in the direction of travel of the vehicle, to change from red to green if the signal is displaying a red light;

(3) The signal, in other directions of travel, to remain red or change to red, as applicable, to prevent other vehicles from entering the intersection; and

(4) The applicable functions described in subparagraphs (1), (2) and (3) to continue until such time as the vehicle equipped with the device is clear of the intersection.

(e) “Signal prioritization device” means a mobile transmitter that, when activated and when a vehicle equipped with such a device approaches an intersection controlled by a traffic-control signal, causes:

(1) The signal, in the direction of travel of the vehicle, to display a green light a few seconds sooner than the green light would otherwise be displayed;

(2) The signal, in the direction of travel of the vehicle, to display a green light for a few seconds longer than the green light would otherwise be displayed; or

(3) The functions described in both subparagraphs (1) and (2).

(f) “Traffic-control signal” means a traffic-control signal, as defined in NRS 484A.290, which is capable of receiving and responding to an emission or transmission from a mobile transmitter.



**Sec. 23.** NRS 484B.327 is hereby amended to read as follows:  
484B.327 1. It is unlawful for any person to remove any barrier or sign stating that a highway is closed to traffic.

2. It is unlawful to pass over a highway that is marked, signed or barricaded to indicate that it is closed to traffic. A person who violates any provision of this subsection may be subject to any additional penalty set forth in NRS 484B.130 or 484B.135 ~~or~~ *or section 2 of this act.*

**Sec. 24.** NRS 484B.363 is hereby amended to read as follows:  
484B.363 1. A person shall not drive a motor vehicle at a speed in excess of 15 miles per hour in an area designated as a school zone except:

(a) On a day on which school is not in session;  
(b) During ~~the~~ *any* period ~~{from a half hour after school is no longer in operation to a half hour before school is next in operation;}~~ *specified by the governing body of a local government or the Department of Transportation pursuant to subsection 6;*

(c) If the zone is designated by an operational speed limit beacon, during the hours when the pupils of the school are in class and the yellow lights of the speed limit beacon are not flashing in the manner which indicates that the speed limit is in effect; or

(d) If the zone is not designated by an operational speed limit beacon, during the times when the sign designating the school zone indicates that the speed limit is not in effect.

2. A person shall not drive a motor vehicle at a speed in excess of 25 miles per hour in an area designated as a school crossing zone except:

(a) On a day on which school is not in session;  
(b) During ~~the~~ *any* period ~~{from a half hour after school is no longer in operation to a half hour before school is next in operation;}~~ *specified by the governing body of a local government or the Department of Transportation pursuant to subsection 6;*

(c) If the zone is designated by an operational speed limit beacon, during the hours when the pupils of the school are in class and the yellow lights of the speed limit beacon are not flashing in the manner which indicates that the speed limit is in effect; or

(d) If the zone is not designated by an operational speed limit beacon, during the times when the sign designating the school zone indicates that the speed limit is not in effect.

3. The driver of a vehicle shall not make a U-turn in an area designated as a school zone or school crossing zone except:

- (a) When there are no children present;
- (b) On a day on which school is not in session;





(c) During ~~{the} any~~ period ~~{from a half hour after school is no longer in operation to a half hour before school is next in operation;}~~ *specified by the governing body of a local government or the Department of Transportation pursuant to subsection 6;*

(d) If the zone is designated by an operational speed limit beacon, during the hours when the pupils of the school are in class and the yellow lights of the speed limit beacon are not flashing in the manner which indicates that the speed limit is in effect; or

(e) If the zone is not designated by an operational speed limit beacon, during the times when the sign designating the school zone or school crossing zone indicates that the speed limit is not in effect.

4. The driver of a vehicle shall not overtake and pass another vehicle traveling in the same direction in an area designated as a school zone or school crossing zone except:

(a) On a day on which the school is not in session;

(b) During ~~{the} any~~ period ~~{from a half hour after school is no longer in operation to a half hour before school is next in operation;}~~ *specified by the governing body of a local government or the Department of Transportation or pursuant to subsection 6;*

(c) If the zone is designated by an operational speed limit beacon, during the hours when the pupils of the school are in class and the yellow lights of the speed limit beacon are not flashing in the manner which indicates that the speed limit is in effect; or

(d) If the zone is not designated by an operational speed limit beacon, during the times when the sign designating the school zone or school crossing zone indicates that the speed limit is not in effect.

5. The governing body of a local government ~~{or} with respect to highways under its jurisdiction and~~ the Department of Transportation *with respect to highways constructed and maintained under the authority of chapter 408 of NRS* shall designate school zones and school crossing zones. ~~{An area must not be designated as a school zone if imposing a speed limit of 15 miles per hour would be unsafe because of higher speed limits in adjoining areas.}~~

6. ~~{Each such}~~ *Subject to subsection 7, and in addition to the authority described in NRS 244.357, 268.425, 269.185, 484B.610 and 484B.613, each* governing body *of a local government* and the Department of Transportation *, as applicable,* shall ~~{provide signs to mark the beginning and end of}~~ *specify for* each school zone and school crossing zone ~~{which}~~ *that* it respectively designates ~~{Each sign marking the beginning of such a zone must include a designation of the hours when the speed limit is in effect or that the~~



~~speed limit is in effect when children are present.] one or more periods during which:~~

*(a) A person may drive a motor vehicle at a speed in excess of 15 miles per an hour pursuant to subsection 1;*

*(b) A person may drive a motor vehicle at a speed in excess of 25 miles per hour pursuant to subsection 2;*

*(c) A driver of a vehicle may make a U-turn pursuant to subsection 3; or*

*(d) A driver of a vehicle may overtake and pass another vehicle traveling in the same direction pursuant to subsection 4.*

7. ~~[With respect to each school zone and school crossing zone in a school district, the superintendent of the school district or his or her designee, in conjunction with the Department of Transportation and the governing body of the local government that designated the school zone or school crossing zone and after consulting with the principal of the school and the agency that is responsible for enforcing the speed limit in the zone, shall determine the times when the speed limit is in effect.] A single period specified pursuant to subsection 6:~~

*(a) May apply to one or more of the acts described in paragraphs (a) to (d), inclusive, of subsection 6; and*

*(b) May not include the 30 minutes after school is no longer in operation or the 30 minutes before school is next in operation.*

8. If, while violating any provision of subsections 1 to 4, inclusive, the driver of a motor vehicle is the proximate cause of a collision with a pedestrian or a person riding a bicycle, an electric bicycle or an electric scooter, the driver is subject to the additional penalty set forth in subsection 4 of NRS 484B.653.

9. As used in this section, “speed limit beacon” means a device which is used in conjunction with a sign and equipped with two or more yellow lights that flash alternately to indicate when the speed limit in a school zone or school crossing zone is in effect.

**Sec. 25.** NRS 484B.367 is hereby amended to read as follows:

484B.367 1. *In addition to the requirements set forth in this section and pursuant to the powers described in NRS 268.425 and 269.185, as applicable, each governing body of a local government or the Department of Transportation that designates a school zone or school crossing zone pursuant to NRS 484B.363 shall:*

*(a) Provide signs to mark the beginning and end of the school zone or school crossing zone.*

*(b) Prescribe the standards for the design, application, installation and maintenance of the signs designating the conditions that apply to the school zone and school crossing zone.*



2. *In prescribing the standards described in subsection 1, the governing body of a local government or the Department of Transportation may:*

*(a) Consult with the superintendent of the school district or the designee of the superintendent and any agency that is responsible for enforcing the speed limit in the school zone or school crossing zone; and*

*(b) Collaborate with the Department of Transportation, if applicable, and other governing bodies of local governments in the same county for the purpose of promoting uniformity of signs and other devices for school zones and school crossing zones.*

3. Each permanent sign which designates a school zone or school crossing zone and the speed limit in that zone must be uniform in size and color and must clearly designate ~~the~~ :

~~(a) The~~ hours during which the speed limit applies ~~is~~ ~~2.1~~ ; or

*(b) That the speed limit applies when children are present.*

4. Each portable sign designating a school zone or school crossing zone and the speed limit in the zone must be uniform in size and color.

5. A portable sign may be placed on or beside a roadway only during those hours when pupils are arriving at and leaving regularly scheduled school sessions.

**Sec. 26.** NRS 484B.403 is hereby amended to read as follows:

484B.403 1. A U-turn may be made on any road where the turn can be made with safety, except as prohibited by this section and by the provisions of NRS 484B.227, 484B.363 and 484B.407.

2. If an official traffic-control device indicates that a U-turn is prohibited, the driver shall obey the directions of the device.

3. The driver of a vehicle shall not make a U-turn in a business district, except at an intersection or on a divided highway where an appropriate opening or crossing place exists.

4. Notwithstanding the foregoing provisions of this section, local authorities and the Department of Transportation may prohibit U-turns at any location within their respective jurisdictions.

5. A person who violates any provision of this section may be subject to any additional penalty set forth in NRS 484B.130 or 484B.135 ~~or~~ *or section 2 of this act.*

**Sec. 27.** NRS 484B.450 is hereby amended to read as follows:

484B.450 1. A person shall not stop, stand or park a vehicle, except when necessary to avoid conflict with other traffic or in compliance with law or the directions of a police officer or official traffic-control device, in any of the following places:



- (a) Except as otherwise provided in subsection 3, on a sidewalk;
- (b) In front of a public or private driveway;
- (c) Within an intersection;
- (d) Within 15 feet of a fire hydrant in a place where parallel parking is permitted, or within 20 feet of a fire hydrant if angle parking is permitted and a local ordinance requires the greater distance;
- (e) On a crosswalk;
- (f) Except as otherwise provided in NRS 484B.520, within 20 feet of a marked or unmarked crosswalk;
- (g) Within 30 feet upon the approach to any official traffic-control signal located at the side of a highway;
- (h) Between a safety zone and the adjacent curb or within 30 feet of points on the curb immediately opposite the ends of a safety zone;
- (i) Within 50 feet of the nearest rail of a railroad;
- (j) Within 20 feet of a driveway entrance to any fire station and, on the side of a highway opposite the entrance to any fire station, within 75 feet of that entrance;
- (k) Alongside or opposite any highway excavation or obstruction when stopping, standing or parking would obstruct traffic;
- (l) On the highway side of any vehicle stopped or parked at the edge of or curb of a highway;
- (m) Upon any bridge or other elevated structure or within a highway tunnel;
- (n) Except as otherwise provided in subsection 2, within 5 feet of a public or private driveway; and
- (o) At any place where official traffic-control devices prohibit stopping, standing or parking.

2. The provisions of paragraph (n) of subsection 1 do not apply to a person operating a vehicle of the United States Postal Service if the vehicle is being operated for the official business of the United States Postal Service.

3. A person may park a bicycle, an electric bicycle or an electric scooter on a sidewalk provided that the bicycle, electric bicycle or electric scooter does not impede the normal and reasonable movement of pedestrians on the sidewalk.

4. A person shall not move a vehicle not owned by the person into any prohibited area or away from a curb to a distance which is unlawful.

5. A local authority may place official traffic-control devices prohibiting or restricting the stopping, standing or parking of



vehicles on any highway where in its opinion stopping, standing or parking is dangerous to those using the highway or where the vehicles which are stopping, standing or parking would unduly interfere with the free movement of traffic. It is unlawful for any person to stop, stand or park any vehicle in violation of the restrictions stated on those devices.

***6. A person who violates any provision of this section may be subject to the additional penalty set forth in section 2 of this act.***

**Sec. 28.** NRS 484B.600 is hereby amended to read as follows:

484B.600 1. It is unlawful for any person to drive or operate a vehicle of any kind or character at:

(a) A rate of speed greater than is reasonable or proper, having due regard for the traffic, surface and width of the highway, the weather and other highway conditions.

(b) Such a rate of speed as to endanger the life, limb or property of any person.

(c) A rate of speed greater than that posted by a public authority for the particular portion of highway being traversed.

(d) A rate of speed that results in the injury of another person or of any property.

(e) In any event, a rate of speed greater than 80 miles per hour.

2. If, while violating any provision of subsection 1, the driver of a motor vehicle is the proximate cause of a collision with a pedestrian or a person riding a bicycle, an electric bicycle or an electric scooter, the driver is subject to the additional penalty set forth in subsection 4 of NRS 484B.653.

3. A person who violates any provision of subsection 1 may be subject to the additional penalty set forth in NRS 484B.130 or 484B.135 ***or section 2 of this act.***

4. Except as otherwise provided by law, if a person is issued a traffic citation for a violation of any provision of subsection 1, the court may, in its discretion, reduce the violation from a moving traffic violation to a violation that is not a moving traffic violation if the person:

(a) Admits to committing the violation and pays the entire amount of the fine and all fees due on or before the date on which the person is first required to make an appearance relating to the citation; and

(b) Provides the court with a copy of his or her driving record.

5. The court shall not reduce a violation pursuant to subsection 4 if the driving record of the person demonstrates a pattern of moving traffic violations.



6. Any fine imposed pursuant to paragraph (a), (b), (c) or (e) of subsection 1 must not exceed \$20 for each mile per hour a person travels above the posted speed limit or the proper rate of speed at which the person should be traveling, as applicable. The provisions of this subsection apply regardless of whether a person pays the entire amount of the fine and all fees due in accordance with subsection 4.

7. Except as otherwise provided in subsection 8, a person who commits a violation of any provision of this section that causes physical injury to a person or damage to property shall be punished by a civil penalty of not more than \$1,000.

8. A person who commits a violation of any provision of this section and, at the time the violation was committed, was operating a vehicle at a rate of speed that was 30 miles per hour or more over that posted by a public authority is guilty of a misdemeanor.

9. As used in this section, “driving record” means a record of:

(a) Each conviction for a traffic offense that occurred within the immediately preceding 10 years;

(b) Each finding that a person committed a civil infraction within the immediately preceding 10 years; and

(c) Each citation issued to a person for a moving traffic violation that was subsequently reduced to a nonmoving violation within the immediately preceding 10 years.

**Sec. 29.** NRS 484B.603 is hereby amended to read as follows:

484B.603 1. The fact that the speed of a vehicle is lower than the prescribed limits does not relieve a driver from the duty to decrease speed when approaching and crossing an intersection, when approaching and going around a curve, when approaching a hill crest, when traveling upon any narrow or winding highway, or when special hazards exist or may exist with respect to pedestrians or other traffic, or by reason of weather or other highway conditions, and speed must be decreased as may be necessary to avoid colliding with any person, vehicle or other conveyance on or entering a highway in compliance with legal requirements and the duty of all persons to use due care.

2. Any person who fails to use due care as required by subsection 1 may be subject to any additional penalty set forth in NRS 484B.130 or 484B.135 **or section 2 of this act.**

**Sec. 30.** NRS 484B.650 is hereby amended to read as follows:

484B.650 1. A driver commits an offense of aggressive driving if, during any single, continuous period of driving within the course of 1 mile, the driver does all the following, in any sequence:



(a) Commits one or more acts of speeding in violation of NRS 484B.363 or 484B.600.

(b) Commits two or more of the following acts, in any combination, or commits any of the following acts more than once:

(1) Failing to obey an official traffic-control device in violation of NRS 484B.300.

(2) Overtaking and passing another vehicle upon the right by driving off the paved portion of the highway in violation of NRS 484B.210.

(3) Improper or unsafe driving upon a highway that has marked lanes for traffic in violation of NRS 484B.223.

(4) Following another vehicle too closely in violation of NRS 484B.127.

(5) Failing to yield the right-of-way in violation of any provision of NRS 484B.250 to 484B.267, inclusive.

(c) Creates an immediate hazard, regardless of its duration, to another vehicle or to another person, whether or not the other person is riding in or upon the vehicle of the driver or any other vehicle.

2. A driver may be prosecuted and convicted of an offense of aggressive driving in violation of subsection 1 whether or not the driver is issued a civil infraction citation pursuant to NRS 484A.7035 for committing, or is found to have committed, any of the acts described in paragraphs (a) and (b) of subsection 1 that are punishable as a civil infraction.

3. A driver who commits an offense of aggressive driving in violation of subsection 1 is guilty of a misdemeanor and:

(a) For the first offense, shall be punished:

(1) By a fine of not less than \$250 but not more than \$1,000; or

(2) By both fine and imprisonment in the county jail for not more than 6 months.

(b) For the second offense, shall be punished:

(1) By a fine of not less than \$1,000 but not more than \$1,500; or

(2) By both fine and imprisonment in the county jail for not more than 6 months.

(c) For the third and each subsequent offense, shall be punished:

(1) By a fine of not less than \$1,500 but not more than \$2,000; or

(2) By both fine and imprisonment in the county jail for not more than 6 months.

4. In addition to any other penalty pursuant to subsection 3:



(a) For the first offense within 2 years, the court shall order the driver to attend, at the driver's own expense, a course of traffic safety approved by the Department and may issue an order suspending the driver's license of the driver for a period of not more than 30 days.

(b) For a second or subsequent offense within 2 years, the court shall issue an order revoking the driver's license of the driver for a period of 1 year.

5. To determine whether the provisions of paragraph (a) or (b) of subsection 4 apply to one or more offenses of aggressive driving, the court shall use the date on which each offense of aggressive driving was committed.

6. If the driver is already the subject of any other order suspending or revoking his or her driver's license, the court shall order the additional period of suspension or revocation, as appropriate, to apply consecutively with the previous order.

7. If the court issues an order suspending or revoking the driver's license of the driver pursuant to this section, the court shall require the driver to surrender to the court all driver's licenses then held by the driver. The court shall, within 5 days after issuing the order, forward the driver's licenses and a copy of the order to the Department.

8. If the driver successfully completes a course of traffic safety ordered pursuant to this section, the Department shall cancel three demerit points from his or her driving record in accordance with NRS 483.448 or 483.475, as appropriate, unless the driver would not otherwise be entitled to have those demerit points cancelled pursuant to the provisions of that section.

9. This section does not preclude the suspension or revocation of the driver's license of the driver, or the suspension of the future driving privileges of a person, pursuant to any other provision of law.

10. A person who violates any provision of subsection 1 may be subject to any additional penalty set forth in NRS 484B.130 or 484B.135 **or section 2 of this act.**

**Sec. 31.** NRS 484B.653 is hereby amended to read as follows:  
484B.653 1. It is unlawful for a person to:

(a) Drive a vehicle in willful or wanton disregard of the safety of persons or property on a highway or premises to which the public has access.

(b) Drive a vehicle in an unauthorized speed contest on a highway or premises to which the public has access.





(c) Organize an unauthorized speed contest on a highway or premises to which the public has access.

(d) Drive a vehicle in an unauthorized trick driving display on a highway or premises to which the public has access.

(e) Facilitate an unauthorized trick driving display on a highway or premises to which the public has access.

↪ A violation of paragraph (a), (b) or (d) of this subsection or subsection 1 of NRS 484B.550 constitutes reckless driving.

2. If, while violating the provisions of subsections 1 to 5, inclusive, of NRS 484B.270, NRS 484B.280, paragraph (a) or (c) of subsection 1 of NRS 484B.283, NRS 484B.350, subsections 1 to 4, inclusive, of NRS 484B.363 or subsection 1 of NRS 484B.600, the driver of a motor vehicle on a highway or premises to which the public has access is the proximate cause of a collision with a pedestrian or a person riding a bicycle, an electric bicycle or an electric scooter, the violation constitutes reckless driving.

3. A person who violates paragraph (a) of subsection 1 is guilty of a misdemeanor and:

(a) For the first offense, shall be punished:

(1) By a fine of not less than \$250 but not more than \$1,000; or

(2) By both fine and imprisonment in the county jail for not more than 6 months.

(b) For the second offense, shall be punished:

(1) By a fine of not less than \$1,000 but not more than \$1,500; or

(2) By both fine and imprisonment in the county jail for not more than 6 months.

(c) For the third and each subsequent offense, shall be punished:

(1) By a fine of not less than \$1,500 but not more than \$2,000; or

(2) By both fine and imprisonment in the county jail for not more than 6 months.

4. A person who violates paragraph (b) or (c) of subsection 1 or commits a violation which constitutes reckless driving pursuant to subsection 2 is guilty of a misdemeanor and:

(a) For the first offense:

(1) Shall be punished by a fine of not less than \$250 but not more than \$1,000;

(2) Shall perform not less than 50 hours, but not more than 99 hours, of community service; and

(3) May be punished by imprisonment in the county jail for not more than 6 months.



(b) For the second offense:

(1) Shall be punished by a fine of not less than \$1,000 but not more than \$1,500;

(2) Shall perform not less than 100 hours, but not more than 199 hours, of community service; and

(3) May be punished by imprisonment in the county jail for not more than 6 months.

(c) For the third and each subsequent offense:

(1) Shall be punished by a fine of not less than \$1,500 but not more than \$2,000;

(2) Shall perform 200 hours of community service; and

(3) May be punished by imprisonment in the county jail for not more than 6 months.

5. In addition to any fine, community service and imprisonment imposed upon a person pursuant to subsection 4, the court:

(a) Shall issue an order suspending the driver's license of the person for a period of not less than 6 months but not more than 2 years and requiring the person to surrender all driver's licenses then held by the person;

(b) Within 5 days after issuing an order pursuant to paragraph (a), shall forward to the Department any licenses, together with a copy of the order;

(c) For the first offense, may issue an order impounding, for a period of 15 days, any vehicle that is registered to the person who violates paragraph (b) or (c) of subsection 1 if the vehicle is used in the commission of the offense;

(d) For the second and each subsequent offense, shall issue an order impounding, for a period of 30 days, any vehicle that is registered to the person who violates paragraph (b) or (c) of subsection 1 if the vehicle is used in the commission of the offense;

(e) If the court issues an order for impoundment pursuant to paragraph (c) or (d), shall require the Department to rescind and cancel the registration of the vehicle unless the registered owner completes an inspection of the vehicle as prescribed by subsection 3 of NRS 482.460; and

(f) Within 5 days after issuing an order pursuant to paragraph (c) or (d) and paragraph (e), shall forward to the Department the number of the license plate of the vehicle and the year, make and model of the vehicle to be impounded, together with a copy of the orders.

6. A person who violates paragraph (d) of subsection 1 is guilty of a gross misdemeanor and:



(a) For the first offense:

(1) Shall be punished by a fine of not less than \$1,000 but not more than \$1,500;

(2) Shall perform not less than 100 hours, but not more than 199 hours, of community service; and

(3) May be punished by imprisonment in the county jail for not more than 364 days.

(b) For the second offense and each subsequent offense:

(1) Shall be punished by a fine of not less than \$1,500 but not more than \$2,000;

(2) Shall perform 200 hours of community service; and

(3) May be punished by imprisonment in the county jail for not more than 364 days.

7. A person who violates paragraph (e) of subsection 1 is guilty of:

(a) For the first offense, a misdemeanor and:

(1) Shall be punished by a fine of not more than \$1,000;

(2) Shall perform not less than 50 hours, but not more than 99 hours, of community service; and

(3) May be punished by imprisonment in the county jail for not more than 6 months.

(b) For the second offense and each subsequent offense, a gross misdemeanor and:

(1) Shall be punished by a fine of not less than \$1,000 and not more than \$1,500;

(2) Shall perform not less than 100 hours, but not more than 199 hours, of community service; and

(3) May be punished by imprisonment in the county jail for not more than 364 days.

8. In addition to any fine, community service and imprisonment imposed upon a person pursuant to subsection 6 or 7, the court:

(a) May issue an order suspending the driver's license of the person for a period of not less than 6 months but not more than 2 years and requiring the person to surrender all driver's licenses then held by the person;

(b) Within 5 days after issuing an order pursuant to paragraph (a), shall forward to the Department any licenses, together with a copy of the order;

(c) May issue an order impounding, for a period of 30 days, any vehicle that is registered to the person if the vehicle is used in the commission of the offense;



(d) If the court issues an order for impoundment pursuant to paragraph (c), shall require the Department to rescind and cancel the registration of the vehicle unless the registered owner completes an inspection of the vehicle as prescribed by subsection 3 of NRS 482.460; and

(e) Within 5 days after issuing an order pursuant to paragraphs (c) and (d), shall forward to the Department the number of the license plate of the vehicle and the year, make and model of the vehicle to be impounded, together with a copy of the orders.

9. Unless a greater penalty is provided pursuant to subsection 4 of NRS 484B.550, a person who does any act or neglects any duty imposed by law while driving or in actual physical control of any vehicle on a highway or premises to which the public has access in willful or wanton disregard of the safety of persons or property, if the act or neglect of duty proximately causes the death of or substantial bodily harm to another person, is guilty of a category B felony and shall be punished by imprisonment in the state prison for:

(a) Except as otherwise provided in paragraph (b), a minimum term of not less than 1 year and a maximum term of not more than 6 years and by a fine of not less than \$2,000 but not more than \$5,000.

(b) A minimum term of not less than 1 year and a maximum term of not more than 10 years and by a fine of not less than \$2,000 but not more than \$5,000 if:

(1) The violation involves operating a vehicle at a rate of speed that is 50 miles per hour or more over the posted speed limit; or

(2) The violation is committed in an area designated as a pedestrian safety zone or school zone or a school crossing zone.

10. A person who violates any provision of this section may be subject to any additional penalty set forth in NRS 484B.130 or 484B.135 *or section 2 of this act* unless the person is subject to the penalty provided pursuant to subsection 4 of NRS 484B.550.

11. As used in this section:

(a) “Facilitate” means to plan, schedule or promote, or assist in the planning, scheduling or promotion of, an unauthorized trick driving display or in any other way participate in an unauthorized trick driving display, including, without limitation:

(1) Using a vehicle to divert, slow, impede or otherwise block traffic with the intent to enable or assist an unauthorized trick driving display; or



(2) Filming or otherwise recording an unauthorized trick driving display with the intent to promote an unauthorized trick driving display.

(b) “Organize” means to plan, schedule or promote, or assist in the planning, scheduling or promotion of, an unauthorized speed contest on a highway or premises to which the public has access, regardless of whether a fee is charged for attending the unauthorized speed contest.

(c) “Trick driving display” means using a vehicle to perform tricks, stunts or other maneuvers on a highway, or premises to which the public has access, upon which traffic has been diverted, slowed, impeded or blocked to enable the performing of such tricks, stunts or maneuvers or having such tricks, stunts or maneuvers filmed or otherwise recorded.

**Sec. 32.** NRS 484B.657 is hereby amended to read as follows:

484B.657 1. A person who, while driving or in actual physical control of any vehicle on a highway or premises to which the public has access, proximately causes the death of another person through an act or omission that constitutes simple negligence is guilty of vehicular manslaughter and shall be punished for a misdemeanor.

2. A person who commits an offense of vehicular manslaughter may be subject to any additional penalty set forth in NRS 484B.130 or 484B.135 **or section 2 of this act.**

3. Upon the conviction of a person for a violation of the provisions of subsection 1, the court shall notify the Department of the conviction.

4. Upon receipt of notification from a court pursuant to subsection 3, the Department shall cause an entry of the conviction to be made upon the driving record of the person so convicted.

**Sec. 33.** NRS 484C.110 is hereby amended to read as follows:

484C.110 1. It is unlawful for any person who:

(a) Is under the influence of intoxicating liquor;

(b) Has a concentration of alcohol of 0.08 or more in his or her blood or breath; or

(c) Is found by measurement within 2 hours after driving or being in actual physical control of a vehicle to have a concentration of alcohol of 0.08 or more in his or her blood or breath,

↳ to drive or be in actual physical control of a vehicle on a highway or on premises to which the public has access.

2. It is unlawful for any person who:

(a) Is under the influence of a controlled substance;



(b) Is under the combined influence of intoxicating liquor and a controlled substance; or

(c) Inhales, ingests, applies or otherwise uses any chemical, poison or organic solvent, or any compound or combination of any of these, to a degree which renders the person incapable of safely driving or exercising actual physical control of a vehicle,

↳ to drive or be in actual physical control of a vehicle on a highway or on premises to which the public has access. The fact that any person charged with a violation of this subsection is or has been entitled to use that drug under the laws of this State is not a defense against any charge of violating this subsection.

3. It is unlawful for any person to drive or be in actual physical control of a vehicle on a highway or on premises to which the public has access with an amount of any of the following prohibited substances in his or her blood or urine that is equal to or greater than:

| Prohibited substance           | Urine<br>Nanograms<br>per milliliter | Blood<br>Nanograms<br>per milliliter |
|--------------------------------|--------------------------------------|--------------------------------------|
| (a) Amphetamine                | 500                                  | 100                                  |
| (b) Cocaine                    | 150                                  | 50                                   |
| (c) Cocaine metabolite         | 150                                  | 50                                   |
| (d) Heroin                     | 2,000                                | 50                                   |
| (e) Heroin metabolite:         |                                      |                                      |
| (1) Morphine                   | 2,000                                | 50                                   |
| (2) 6-monoacetyl morphine      | 10                                   | 10                                   |
| (f) Lysergic acid diethylamide | 25                                   | 10                                   |
| (g) Methamphetamine            | 500                                  | 100                                  |
| (h) Phencyclidine              | 25                                   | 10                                   |

4. For any violation that is punishable pursuant to paragraph (c) of subsection 1 of NRS 484C.400, it is unlawful for any person to drive or be in actual physical control of a vehicle on a highway or on premises to which the public has access with an amount of any of the following prohibited substances in his or her blood that is equal to or greater than:



| Prohibited substance                                  | Blood<br>Nanograms<br>per milliliter |
|-------------------------------------------------------|--------------------------------------|
| (a) Marijuana (delta-9-tetrahydrocannabinol)          | 2                                    |
| (b) Marijuana metabolite (11-OH-tetrahydrocannabinol) | 5                                    |

5. If consumption is proven by a preponderance of the evidence, it is an affirmative defense under paragraph (c) of subsection 1 that the defendant consumed a sufficient quantity of alcohol after driving or being in actual physical control of the vehicle, and before his or her blood or breath was tested, to cause the defendant to have a concentration of alcohol of 0.08 or more in his or her blood or breath. A defendant who intends to offer this defense at a trial or preliminary hearing must, not less than 14 days before the trial or hearing or at such other time as the court may direct, file and serve on the prosecuting attorney a written notice of that intent.

6. A person who violates any provision of this section may be subject to any additional penalty set forth in NRS 484B.130 or 484B.135 ~~or~~ **or section 2 of this act.**

**Sec. 34.** NRS 484C.120 is hereby amended to read as follows:  
484C.120 1. It is unlawful for any person who:

(a) Is under the influence of intoxicating liquor;  
(b) Has a concentration of alcohol of 0.04 or more but less than 0.08 in his or her blood or breath; or

(c) Is found by measurement within 2 hours after driving or being in actual physical control of a commercial motor vehicle to have a concentration of alcohol of 0.04 or more but less than 0.08 in his or her blood or breath,

↪ to drive or be in actual physical control of a commercial motor vehicle on a highway or on premises to which the public has access.

2. It is unlawful for any person who:

(a) Is under the influence of a controlled substance;  
(b) Is under the combined influence of intoxicating liquor and a controlled substance; or

(c) Inhales, ingests, applies or otherwise uses any chemical, poison or organic solvent, or any compound or combination of any of these, to a degree which renders the person incapable of safely driving or exercising actual physical control of a commercial motor vehicle,

↪ to drive or be in actual physical control of a commercial motor vehicle on a highway or on premises to which the public has access.



The fact that any person charged with a violation of this subsection is or has been entitled to use that drug under the laws of this State is not a defense against any charge of violating this subsection.

3. It is unlawful for any person to drive or be in actual physical control of a commercial motor vehicle on a highway or on premises to which the public has access with any prohibited substance in his or her blood or urine. As used in this subsection, “prohibited substance” means any substance described in 21 C.F.R. § 1308.11.

4. If consumption is proven by a preponderance of the evidence, it is an affirmative defense under paragraph (c) of subsection 1 that the defendant consumed a sufficient quantity of alcohol after driving or being in actual physical control of the commercial motor vehicle, and before his or her blood or breath was tested, to cause the defendant to have a concentration of alcohol of 0.04 or more in his or her blood or breath. A defendant who intends to offer this defense at a trial or preliminary hearing must, not less than 14 days before the trial or hearing or at such other time as the court may direct, file and serve on the prosecuting attorney a written notice of that intent.

5. A person who violates any provision of this section may be subject to any additional penalty set forth in NRS 483.939, 484B.130 or 484B.135 **H or section 2 of this act.**

6. As used in this section:

(a) “Commercial motor vehicle” means a motor vehicle or combination of motor vehicles used in commerce to transport passengers or property if the motor vehicle:

(1) Has a gross combination weight rating of 26,001 or more pounds which includes a towed unit with a gross vehicle weight rating of more than 10,000 pounds;

(2) Has a gross vehicle weight rating of 26,001 or more pounds;

(3) Is designed to transport 16 or more passengers, including the driver; or

(4) Regardless of size, is used in the transportation of materials which are considered to be hazardous for the purposes of the federal Hazardous Materials Transportation Act, 49 U.S.C. §§ 5101 et seq., and for which the display of identifying placards is required pursuant to 49 C.F.R. Part 172, Subpart F.

(b) The phrase “concentration of alcohol of 0.04 or more but less than 0.08 in his or her blood or breath” means 0.04 gram or more but less than 0.08 gram of alcohol per 100 milliliters of the blood of a person or per 210 liters of his or her breath.





**Sec. 35.** NRS 268.425 is hereby amended to read as follows:

268.425 The city council or other governing body of each incorporated city, whether incorporated by general or special act, shall cause to be displayed, in each school zone and school crossing zone where the city has posted a speed limit, signs or other devices designating ~~the~~:

1. *The* times during which the speed limit in the zone is to apply ~~H~~; or

2. *That the speed limit in the zone applies when children are present.*

**Sec. 36.** NRS 269.185 is hereby amended to read as follows:

269.185 1. Except as otherwise provided in NRS 707.375, in addition to the powers and jurisdiction conferred upon the town boards or boards of county commissioners by this chapter, such boards may:

(a) Regulate traffic upon the streets and alleys of towns or cities governed by such boards pursuant to this chapter.

(b) Regulate the speed, parking, stopping, turning and operation of all motor vehicles and other vehicles using the streets and alleys.

(c) Pass and adopt all ordinances, rules and regulations, and do and perform all acts and things necessary for the execution of the powers and jurisdiction conferred by this section.

2. The town board or board of county commissioners shall cause to be displayed, in each school zone and school crossing zone where the county has posted a speed limit, signs or other devices designating ~~the~~:

(a) *The* times during which the speed limit in the zone is to apply ~~H~~; or

(b) *That the speed limit in the zone applies when children are present.*

**Sec. 36.2.** Chapter 388 of NRS is hereby amended by adding thereto the provisions set forth as sections 36.3 and 36.4 of this act.

**Sec. 36.3. 1.** *A public school shall not include any data or information concerning a pupil within a directory of pupils maintained by the school other than the name, grade level and school photograph of a pupil.*

2. *As used in this section, “school photograph” means a photograph of a pupil that is used in an official publication of the school, including, without limitation:*

(a) *An honor roll or other recognition list;*

(b) *A newsletter;*

(c) *A playbill;*



*(d) A program for a graduation, an interscholastic activity or event, an extracurricular activity or other ceremony; and*

*(e) A yearbook.*

**Sec. 36.4.** *1. Except as otherwise provided in NRS 388.281 to 388.296, inclusive, or as necessary to provide instructional programming and services or wrap-around services to a pupil, a school district or public school shall not disclose the phone number or address of any pupil or parent or legal guardian of a pupil to a third party unless required by federal law or a subpoena, warrant or order issued by a court of competent jurisdiction.*

*2. A third party may request information concerning a pupil contained in a directory pursuant to section 36.3 of this act by submitting a written request to the applicable public school containing:*

*(a) The date of the request;*

*(b) The purpose for which the third party will use the requested information; and*

*(c) Either:*

*(1) If the information is requested for a journalistic purpose, an affirmation that the requested information will only be used for a journalistic purpose and sufficient documentation to demonstrate that the person requesting the information is a reporter or editorial employee who is employed by or affiliated with a newspaper, press association or commercially operated, federally licensed radio or television station; or*

*(2) If the information is not requested for a journalistic purpose, an affirmation that the requested information will only be used for the purpose described pursuant to paragraph (b) and that such information will not be sold, transferred or distributed to any other party.*

*3. Each school district shall comply with the requirements of the Every Student Succeeds Act, 20 U.S.C. § 7908 when providing information concerning a pupil pursuant to this section.*

**Sec. 37.** The provisions of NRS 354.599 do not apply to any additional expenses of a local government that related to the provisions of this act.

**Sec. 38.** Notwithstanding the provisions of NRS 218D.430 and 218D.435, a committee may vote on this act before the expiration of the period prescribed for the return of a fiscal note in NRS 218D.475. This section applies retroactively from and after November 13, 2025.

**Sec. 39.** This act becomes effective on July 1, 2026.





